

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Theo Kaufman	Team: Squad #06	CCRB Case #: 202302368	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/17/2022 10:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/17/2023	Precinct: 05		
Date/Time CV Reported Wed, 03/15/2023 3:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/15/2023 3:18 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Teodoro Tejada	25055	969389	005 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alan Yaroshevsky	13089	968893	005 PCT
2. SGT Jawad Javed	04572	945851	005 PCT
3. SGT Carl Johnson	02719	945857	005 PCT
4. PO Denise Sezer	21860	962794	005 PCT
5. PO Stephon Joefield	14719	966122	005 PCT
6. PO Brandon Raysor	23650	967283	WARRSEC
7. PO Nicholas Reeves	30719	967284	005 PCT
8. PO Shantell Matthis	31883	968623	005 PCT
9. PO Daniel Steele	02361	969377	005 PCT
10. PO Jianing Guo	26645	971075	005 PCT
11. LT Louis Barbarelli	00000	932298	005 PCT
12. PO Edwin Duran	18925	963018	PBMS SCOOTER

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Manhattan.	A . Within NYPD Guidelines
B . Officers	Abuse: Officers searched § 87(2)(b) in Manhattan.	B . Within NYPD Guidelines
C . PO Teodoro Tejada	Abuse: Police Officer Teodoro Tejada provided a false official statement against § 87(2)(b)	C . Unfounded

Case Summary

On March 15, 2023, § 87(2)(b) filed this complaint with the CCRB via phone. § 87(2)(g)

On June 17, 2022, at approximately 10:30pm, PO Teodoro Tejada and other officers of the 5th Precinct responded to § 87(2)(b) in response to a 911 call from § 87(2)(b), who alleged § 87(2)(b) assaulted her. Officers arrived on scene and arrested § 87(2)(b). Officers entered § 87(2)(b)'s bedroom in § 87(2)(b) to obtain her identification and lock her window (**Allegations A and B: Abuse of Authority: Within NYPD Guidelines**). § 87(2)(b) was taken to the 5th Precinct Stationhouse and lodged in a cell. § 87(2)(b) requested to be seen by EMS and was treated for scratches on her arms and bruising to her back. PO Tejada allegedly made a false official statement by not documenting § 87(2)(b)'s injuries on the medical treatment of prisoner report (**Allegation C: Abuse of Authority: Unfounded**).

§ 87(2)(b) was arrested as a result of this incident and charged with § 87(2)(b)

The investigation received BWC footage regarding this incident (**BR 02,03**). No stationhouse footage was obtained as this complaint was reported nine months after the incident date.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b) in Manhattan.

Allegation (B) Abuse of Authority: Officers searched § 87(2)(b) in Manhattan.

EVENT Chronology § 87(2)(b) notes that a female caller stated her roommate beat her and she was bleeding from her arm. Female caller further states that her roommate has a mental condition (**BR 01**).

At timestamp 00:59 of PO Stephon Joefield's BWC footage, he and his partner exit their vehicle, and speak with § 87(2)(b) who states that § 87(2)(b) choked her. § 87(2)(b) shows the officers her arm, but due to the glare of PO Joefield's flashlight, no marks are visible on the footage. § 87(2)(b) says that she is afraid of § 87(2)(b). At 03:05, § 87(2)(b) opens the front door for the officers, and shows them a scratch on her right breast. No marks are visible from PO Joefield's footage. At 04:00, § 87(2)(b) tries to open the door to the apartment with her keys and says that § 87(2)(b) locked the door (**BR 02**).

At timestamp 04:25 of PO Tejada's BWC footage, he and another officer are standing in the hallway right outside § 87(2)(b)'s apartment. § 87(2)(b) opens the apartment door, and PO Tejada tells her to come outside. At 04:30, § 87(2)(b) steps outside. PO Tejada asks § 87(2)(b)'s name, which she provides. At 04:35, § 87(2)(b) says that she went to sleep, and § 87(2)(b) came home and was making noise. § 87(2)(b) came and closed the door to the bathroom and started attacking § 87(2)(b). § 87(2)(b) says that § 87(2)(b) scratched her arm and her face. § 87(2)(b) says, "I grabbed her neck, and said never fucking touch me again." At 04:52, PO Tejada and PO Alan Yaroshevsky handcuff § 87(2)(b). At 05:13, § 87(2)(b) asks why officers are handcuffing her but not handcuffing § 87(2)(b). PO Yaroshevsky asks where § 87(2)(b) attacked § 87(2)(b). § 87(2)(b) says that she has a scratch on her face. PO Tejada tells § 87(2)(b) that she does not have any visible marks, but § 87(2)(b) does. § 87(2)(b) says that she has a mark on her arm. At 06:20,

§ 87(2)(b) asks officers to lock her room door if she is going to be arrested. Officers go downstairs to § 87(2)(b)'s room and close § 87(2)(b)'s window (BR 03).

§ 87(2)(b) testified that on June 17, 2022, at approximately 10:30pm, she and her roommate, § 87(2)(b) had an altercation in which § 87(2)(b) hit § 87(2)(b) with a door and slammed § 87(2)(b) into a door. § 87(2)(b) pushed § 87(2)(b) back and told her not to touch her. § 87(2)(b) then left the apartment and § 87(2)(b) went to sleep. § 87(2)(b) did not call the police as she thought it would be a waste of her time. At approximately 10:45pm, § 87(2)(b) heard a knock on her window and saw that the police were outside. The officers told § 87(2)(b) that § 87(2)(b) reported that § 87(2)(b) assaulted her. § 87(2)(b) showed PO Yaroshevsky the injury to her face. § 87(2)(b) explained that § 87(2)(b) assaulted her first, and that she barely defended herself. The officers told § 87(2)(b) that she was being placed under arrest, and PO Yaroshevsky and other officers entered § 87(2)(b)'s apartment. § 87(2)(b) was handcuffed and transported to the 5th Precinct Stationhouse (BR 04).

§ 87(2)(g)

One of the limited exceptions to the warrant requirement is voluntary consent to the search. People v. Gonzalez, 39 N.Y.2d 122 (1976) (BR 06).

§ 87(2)(g)

It is therefore recommended that **allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Police Officer Teodoro Tejada provided a false official statement against § 87(2)(b)

PO Tejada's BWC footage does not depict any conversation between himself and EMS (BR 03).

§ 87(2)(b) testified that she was taken to the 5th Precinct stationhouse and requested EMS. EMS arrived and treated § 87(2)(b)'s injuries, including scratches on her arms. PO Tejada said that he was going to document her injuries and § 87(2)(b) asked him to take a photograph of the injuries. Later, § 87(2)(b) reviewed PO Tejada's report which noted that § 87(2)(b) had no injuries and that § 87(2)(b) choked § 87(2)(b). § 87(2)(b) never said that she choked § 87(2)(b) and never said so to any officer (BR 04).

EMT § 87(2)(b) testified that § 87(2)(b) had scratches on her arms but did not have any significant injury or any sign of skin breaks. § 87(2)(g)

EMT § 87(2)(b) testified that § 87(2)(b) refused to go to the hospital but wanted to document her injuries. § 87(2)(b)'s injuries were very minor, she was not bleeding, and her skin was not broken. EMS told the officer present that § 87(2)(b) did not want to go to the hospital but did not recall if either she or her partner told any officer that § 87(2)(b) had no visible markings. EMT § 87(2)(b) did not recall how § 87(2)(b)'s markings were described to officers, if at all (BR 14).

§ 87(2)(a) PHL § 18(6)

PO Tejada testified that, at the stationhouse, § 87(2)(b) complained to him that she had scratches. PO Tejada did not see any visible marks on her. EMS was called to evaluate § 87(2)(b). When EMS arrived, § 87(2)(b) said that she § 87(2)(b) had scratches and that they were infected, and EMS said that they did not see any. EMS gave § 87(2)(b) a paper towel with sanitizer, § 87(2)(b) wiped her face with it, and then EMS left without any further conversation. PO Tejada was shown the Medical Treatment of Prisoner Report (**BR 08**), which notes “no visible marks as deemed by EMS”. PO Tejada was also shown the Pre-Hospital Care Report § 87(2)(a) PHL § 18(6)

PO Tejada stated that he was not aware of what is written in the Pre-Hospital Care Report, and noted that, based on his conversation with EMS, there were no visible markings. Additionally, PO Tejada noted that EMS signs off on the Medical Treatment of Prisoner Report, as per standard procedure. PO Tejada additionally took a photograph of markings on § 87(2)(b)'s right upper arm (**BR 10**). PO Tejada interpreted the markings on § 87(2)(b)'s arms as possibly defensive markings from the altercation with § 87(2)(b). PO Tejada did not see any other injuries on § 87(2)(b). PO Tejada did not intentionally misrepresent any injuries received by § 87(2)(b) on any paperwork (**BR 05**).

§ 87(2)(g)

Medical Treatment of Prisoner Report prepared by PO Tejada notes that § 87(2)(b) complained of scratches and had no visible marks as deemed by EMS (**BR 08**).

Arrest Report § 87(2)(b) prepared by PO Tejada, does not document any statements made by § 87(2)(b) and notes her condition as “apparently normal” (**BR 09**).

Photographs provided by PO Tejada, which were taken on his Department cell phone, show three minor markings to § 87(2)(b)'s right upper arm (**BR 10**).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **allegation C** be closed as **Unfounded**.

Allegations not Pleaded

- § 87(2)(g)

- § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three additional CCRB complaints and has been named as a victim in ten additional allegations (**BR 11**):
 - § 87(2)(b), § 87(2)(g)
- PO Tejada has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 12**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 6

Investigator:	<u>Theo Kaufman</u>	<u>Investigator Theo Kaufman</u>	<u>09/11/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>9/11/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date